

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-17

**ORIENT OVERSEAS CONTAINER LINE LTD. AND OOCL (EUROPE) LTD.
RESPONDENTS AND THIRD-PARTY COMPLAINANTS,**

v.

**SAMSUNG ELECTRONICS COMPANY, LTD. ,
THIRD-PARTY RESPONDENT.**

AMENDED THIRD-PARTY COMPLAINT

Third-Party Complainants Orient Overseas Container Line Ltd. and OOCL (Europe) Ltd. (together, “OOCL” or “Third Party Complainants”), by their undersigned attorneys, file this Amended Third-Party Complaint against Samsung Electronics Company, Ltd. (“Samsung” or “Third-Party Respondent”), alleging violations of the Shipping Act of 1984, 46 U.S.C. § 40101, et. seq. (the “Shipping Act”) as follows:

I. PARTIES

1. The Complainant, Samsung Electronics America, Inc, (“SEA”) alleges it is a corporation, organized and existing under the laws of the State of New York, with a principal place of business at 85 Challenger Road, Ridgefield Park, New Jersey, 07660-2118, which sells home appliances and electronic products in the United States.

2. Respondent and Third-Party Complainant Orient Overseas Container Line Ltd. is a corporation engaged in business as an ocean common carrier that is organized and existing under the laws of Hong Kong with its principal place of business located at 25 Harbour Road, 31st Floor Harbour Centre, Wanchai, Hong Kong.

3. Respondent and Third-Party Complainant OOCL (Europe) Limited is a corporation engaged in business as an ocean common carrier that is organized and existing under the laws of the United Kingdom with its principal place of business located at OOCL House, Levington Park, Bridge Road, Levington Suffolk, IP10 0NE, United Kingdom.

4. The Third-Party Respondent, Samsung, is a corporation engaged in the global electronics business that is organized and existing under the laws of South Korea, with its principal place of business located at 129 Samsung-ro, Yeongtong-gu, Gyeonggi-do 16677, Suwon-Shi, Republic of Korea.

5. Upon information and belief, the Complainant SEA is a wholly owned subsidiary and agent of Samsung and acted in concert with the Third-Party Respondent, Samsung.

II. JURISDICTION

6. The FMC has subject-matter jurisdiction over this Amended Third-Party Complaint pursuant to the Shipping Act of 1984, as amended by the Ocean Shipping Reform Acts of 1998 and 2022, 46 U.S.C. § 40101, *et seq.*, 46 C.F.R. 502.12, and Rule 14 of the Federal Rules of Civil Procedure.

7. The Third-Party Respondent, Samsung is a “person” as that term is used in 46 U.S.C. § 41102(a), which provides the FMC with both subject matter jurisdiction and personal jurisdiction over the Third-Party Respondent.

8. Orient Overseas Container Line Ltd. and OOCL (Europe) Limited were the VOCCs which performed the transportation of cargo consigned to Complainant and moved pursuant to the terms of Service Contracts Nos. PE213002 dated August 25, 2021 and PE223002 dated September 28, 2022 (collectively, the “Service Contracts”).

9. Samsung Electronics Company, Ltd. was the signatory to the Service Contracts and designated as the Shipper therein.

10. The FMC's jurisdiction extends to ocean transportation involving through transportation, and the fact that the practices described herein may involve the inland portion of the through transportation does not deprive the FMC of subject matter jurisdiction.

11. The FMC accordingly has jurisdiction to adjudicate the matters alleged against Samsung in this Amended Third-Party Complaint.

III. FACTUAL ALLEGATIONS

A. Samsung's Request for Quotations

12. In 2021 and 2022, Samsung invited OOCL to submit proposals for the transport of Samsung's cargoes and transmitted documents to OOCL entitled 2021 RFQ for Ocean Freight and 2022 RFQ for Ocean Freight (collectively, the "Samsung RFQs") which described the terms and conditions which OOCL was required to meet in the event Samsung accepted OOCL's proposals.

13. Both of the Samsung RFQs required that all proposals contain specified detention and demurrage free time at destination; for North America in both 2021 and 2022, these requirements were for five demurrage free days and twenty detention free days.

14. Both of the 2021 and 2022 RFQs stated, "storage to be acceptable only when it's directly billed from Port Authority/Rail company."

15. Both of the Samsung RFQs provided under paragraph 6, captioned "Customer Service", that bidding carriers, including OOCL, were required to provide local delivery service (if any) with Samsung's preferred trucker ("CNT"), and stated as follows:

"Preferred Trucker & Delivery

- Carriers are required to provide local delivery service with consignee's preferred trucker if any. (CNT = Customer Nominated Trucker)"

B. Service Contracts with Samsung

16. Following Samsung's acceptance of bids submitted by OOCL in response to its RFQs, Samsung executed the Service Contracts which were filed with Federal Maritime Commission, in accordance with 46 C.F.R. §530.8.

17. Samsung agreed, pursuant to paragraph 10 of the Service Contracts, that they shall be governed by United States Law and by the Shipping Act of 1984 as amended.

18. Paragraph 2 of the Service Contracts, captioned "SHIPPER AND AFFILIATES CLAUSES", states that the Service Contracts shall be binding between the Carrier (OOCL) and the Shipper (Samsung), and the affiliates of the Shipper that are listed in Appendix B of the Contracts.

19. Appendix B to each of the Service Contracts lists the Complainant, SEA, as an Affiliate of Samsung, in addition to other entities.

20. Pursuant to Paragraph 2 of the Service Contracts, Samsung represented and warranted that each of the Affiliates listed on Appendix B was an entity controlled by Samsung, and that the person executing the Service Contracts had the authority to enter into the Service Contracts on behalf of Samsung and the Affiliates listed on Appendix B.

21. Pursuant to the representation and warranties made by Samsung in the Service Contracts, the Complainant, SEA, is an entity that is controlled by Samsung.

22. Pursuant to the representation and warranties made by Samsung in the Service Contracts, the Complainant, SEA is bound by the terms and conditions of the Service Contracts.

23. Pursuant to Paragraph 16 of the Service Contracts, Samsung and the parties set forth in the Appendix agreed that they shall be jointly and severally liable for performance of the terms and conditions of the Service Contracts, including the payment of all rates and charges.

24. Pursuant to Paragraph 1 of the Service Contracts, Samsung agreed that all cargoes moving under the Service Contracts shall be subject to the tariffs listed in Appendix A of each Contract.

25. Pursuant to the representation and warranties made by Samsung in the Service Contracts, the Complainant, SEA as an Affiliate of Samsung, had also agreed that all cargoes moving under the Service Contracts shall be subject to the tariffs listed in Appendix A of each of the Service Contracts.

26. Appendix A of the Service Contracts incorporated by reference Tariff Rule OOLL-100.

27. Tariff Rule OOLL-100 Rule Number: T-26, published on January 2, 2020 and effective on February 1, 2020, states the following with respect to Customer Nominated Truckers (“CNT”):

“...when a customer nominated trucker (CNT) is used for store door delivery for inbound shipment (or door pick up for outbound shipment) at the request of Shipper (or any other entity with an interest in the cargo), it is hereby agreed that the following terms and conditions shall apply:

- Carrier will act as agent of Shipper for purposes of arranging the trucking, and the contract of carriage for inland door delivery transportation shall be deemed to be between the trucker and Shipper or the owner of the cargo. The CNT will be employed by the Shipper or the owner of the cargo, not Carrier, even though Carrier's rates are inclusive of door delivery. Carrier shall pay the CNT only as agent for Shipper.”

28. In consideration of the representations made by Samsung, OOCL was induced to agree to terms and conditions that were favorable to both SEA and Samsung, including OOCL’s agreement to provide favorable freight rates, extended free time, and other terms, which OOCL would not have otherwise agreed to.

29. Samsung knew or should have known from the above provisions, under the Service Contracts and the tariffs incorporated therein, that Samsung as the shipper and SEA as the owner of the shipments, were responsible for detention and demurrage charges, unless the charges resulted directly from delays that were the fault of OOCL.

30. Notwithstanding this knowledge, Samsung concealed its position, both during the negotiation and execution of the Service Contracts and during the performance of the Service Contracts, that neither SEA nor Samsung would accept responsibility for delay fees that were not the fault of OOCL.

31. Upon information and belief, Samsung's actions induced OOCL to enter into Service Contracts with terms, rates and charges more favorable than those generally available to the shipping public.

32. Samsung's concealment of its rejection of the specific terms it had negotiated on behalf of itself and SEA caused OOCL to offer rates and other favorable terms that it would not have otherwise offered, if OOCL had known that Samsung disagreed with, and that neither Samsung nor SEA would honor the terms of the Service Contracts regarding responsibility for delays.

C. OOCL's Performance Under the Service Contracts

33. Each of the Service Contracts specified rates for the carriage of Samsung's goods from various ports in Asia to various ports and points in North America.

34. SEA appeared as consignee on bills of lading issued under the Service Contracts.

35. Samsung's shipments carried by OOCL under the Service Contracts were transported pursuant to bills of lading specifying that delivery was to be made on a "Store Door" basis at inland locations in North America.

36. OOCL's freight rates for Samsung's shipments included the basic rate for ocean transportation and inland delivery by rail and/or truck, subject to conditions set forth in the applicable service contract and tariffs.

37. For Store Door moves under the Service Contracts, OOCL assigned shipments to CNTs that were designated by SEA to perform the trucking to the final destinations, as required by Samsung.

38. For Store Door shipments assigned to a SEA CNT, OOCL specifically did not offer or agree to be responsible for demurrage, detention, rail storage or any other costs or charges incurred by the CNT, other than chassis rental incurred during free time, and all such costs remained the responsibility of Samsung or its Affiliate, SEA.

39. For store door shipments assigned to CNTs, OOCL contracted with the CNTs as agent for a disclosed principal, Samsung, and the drayage contract was between the CNTs and OOCL's principal, Samsung, or the owner of the cargo, SEA.

40. OOCL was not a party to the drayage contracts between the CNTs and Samsung or SEA.

41. OOCL's relevant published tariff of general applicability on demurrage provided clear rules for the assessment of demurrage charges, including the results when a shipper or consignee fails to take timely delivery of the cargo.

42. OOCL published tariff rules of general applicability governing equipment free time and detention at U.S. destinations.

43. OOCL's equipment free time and detention tariff rule for U.S. destinations, and the Service Contracts, governed the charges that OOCL applied for each day or fraction that the consignee kept possession of OOCL's equipment beyond the allowed free time.

44. During the negotiation of the Service Contracts and at all times thereafter, Samsung and its Affiliate, SEA were aware or should have been aware that, under the provisions of the Service Contracts, the published tariffs and the bills of lading, they were collectively responsible for any detention/per diem, demurrage, storage, and similar charges (“charges”) incurred by CNTs without fault of OOCL.

45. Neither Samsung nor SEA ever informed OOCL that they disagreed with the clear provisions of the Service Contracts, the published tariffs or the bills of lading during the terms of the Service Contracts.

46. The requirement of the Service Contracts, the published tariffs and the bills of lading, that Samsung and/or SEA assume responsibility for delay charges incurred by their CNTs was part of the quid pro quo for OOCL’s offering favorable rates and other terms and conditions to Samsung under the Service Contracts.

47. OOCL would not have entered into the Service Contracts providing for the favorable rates and terms set forth therein had Samsung or SEA revealed, rather than concealed, their disagreement with the clear statement of the documents they signed that Samsung (shipper) and/or SEA (consignee) would be responsible for delay costs incurred by their CNTs or by Samsung’s consignees without fault on the part of OOCL for specific delays.

48. During the periods that the Service Contracts were in effect, OOCL routinely sent to SEA, and through SEA to Samsung, Open Per Diem Invoice Statements, Statements of Account, and other communications listing outstanding charges accrued in the United States.

49. Samsung and SEA were fully aware of OOCL’s demurrage and detention dispute process described below in paragraph 53, which was in place at all relevant times herein, and knew they could have timely challenged the accuracy of charges at any time, but they did not do so.

50. Upon information and belief, Samsung was well aware of the mismanagement by its consignee and affiliate SEA of containers of Samsung Cargo offloaded at the Port of New York/New Jersey in the Fall of 2021, some of which continued to languish there even after the 2021 service contract expired.

D. SEA's Claim for Reimbursement of Demurrage, Detention & Other Charges

51. On October 7, 2022, SEA transmitted a letter to OOCL (USA) Inc. captioned "NOTICE OF DEMAND FOR ACTION" ("Demand"), in which it asserted, *inter alia*, that it had been coerced to pay numerous invoices assessing "demurrage, detention, handling and/or storage fees" ("Fees") since 2020 in the amount of USD \$11 million "based on available data...as of Q1 2022" and demanded an immediate refund of these Fees, plus all Fees it pays in the future, on the grounds that the shipments moved under "store-door" terms and that "OOCL was responsible for obtaining all necessary resources therefor under the store-door terms."

52. SEA's October 7, 2022 Demand did not identify the bill of lading numbers, container numbers or individual charges related to the corresponding bills of lading and containers; did not produce any documents, communications or information explaining why the charges were incorrect and should be refunded, waived or reduced; and, instead, claimed that all the charges comprising the \$11 million claim were improper because SEA's shipments moved on a "store-door" basis.

53. OOCL had, and continues to have, a demurrage and detention dispute process in place which meets the FMC's guidelines for "best practices" by which vessel-operating common carriers' dispute processes should be measured. *See*, Vessel-Operating Common Carrier Audit Program, Best Practices (available at <https://www.fmc.gov/fmc-vocc-audit-team-urges-carriers-to-adopt-detention-demurrage-best-practices/>). That OOCL's dispute process met the FMC's best practices guidelines was confirmed verbally by FMC staff.

54. Prior to issuance of the October 7, 2022 Demand, neither SEA nor Samsung had contested the individual charges comprising the \$11 million claim set forth in the Demand through OOCL's demurrage and detention dispute process which was available on OOCL's website.

55. OOCL (USA) Inc. responded to SEA's Demand, noting that, based upon the sparse information about the claim that SEA had provided, the charges for demurrage had been incurred because shipments had been left at the relevant terminal past the expiration of free time while awaiting pickup by SEA's CNT; that OOCL had issued multiple and timely notifications to SEA regarding the date of arrival, last free day and accrued demurrage charges for SEA's shipments; that OOCL had issued "long-dwelling letters" to both SEA and the Notify Parties shown on each SEA bill of lading seeking to obtain its instructions with respect to these containers which had dwelled at the marine terminal for so long that they were in danger of being declared abandoned; and that SEA had not substantively responded to these communications.

56. As to the Demand's claim for reimbursement of detention charges, which were incurred due to SEA's failure to return empty containers prior to the expiration of free time, OOCL (USA) Inc. noted that it had not received any notices, documents or other information from SEA which described extenuating circumstances that impacted SEA's ability to timely return OOCL's containers, such as unavailability of appointments, return facility closures or other matters outside the control of SEA that would warrant mitigation of the detention charges that were assessed.

57. Despite SEA's failure to challenge invoices in a timely manner through OOCL's dispute resolution process, OOCL (USA) Inc. advised SEA that it would nevertheless review any documentation or information SEA provided which would "cast light on any conditions that

prevailed at the time these charges were incurred...and reach a mutually satisfactory conclusion.”

58. Other than a one page PDF which summarized its claims that was attached to the initial Demand, none of the documents or information requested by OOCL (USA) Inc. to enable it to identify the shipments which comprised SEA’s claim or further evaluate the circumstances which gave rise to the individual demurrage and detention charges that were assessed, has been provided by SEA.

59. Despite OOCL’s multiple requests for information about which charges SEA asserted were unlawfully assessed by OOCL and unrelated third parties, to date neither SEA nor Samsung has provided information specifying which charges they assert were the responsibility of OOCL. SEA’s only statement on the matter was that OOCL was responsible for the charges, regardless of which entity was at fault, simply because the shipments were transported on a Store Door basis.

60. Despite Samsung’s clear understanding that its consignees were responsible for demurrage and detention charges unless they were caused to be accrued by OOCL, in October 2022 it suddenly stated a new interpretation which shifted the risk of delays caused by Samsung’s consignees to OOCL, even where those consignees controlled the truckers it had selected as CNTs.

61. Despite having signed the Service Contracts and having otherwise manifested its agreement to be responsible for the delay costs of the CNTs and consignees, Samsung, through its subsidiary, agent, affiliate, and consignee SEA, demanded that OOCL not only refund any and all of the charges OOCL had assessed, but also that OOCL waive all charges SEA had not paid. SEA even demanded that OOCL pay charges assessed by third parties without action or fault on behalf of OOCL, and even if the costs resulted from the fault of SEA or its CNT that

OOCL had not assessed, all regardless of whether the delays that resulted in the charges were caused by SEA or not.

62. Given the clarity of the terms imposing responsibility on Samsung and its Affiliates, Samsung's conduct was knowing and willful.

63. Demanding refunds for lawfully assessed charges in bad faith is an unjust or unfair means or device.

64. Refusing to pay lawfully assessed charges in bad faith is an unjust or unfair means or device.

65. Demanding payment from OOCL for costs incurred by SEA due to delays caused by SEA or the agents of Samsung or SEA, that were assessed by and paid to third parties, is an unjust or unfair means or device.

66. Samsung obtained or attempted to obtain less than applicable rates through the fraud or concealment as set forth above both at the time of the signing of the Service Contracts and at all times during the terms of the Service Contracts.

67. Through these unjust means or devices, Samsung has obtained service from OOCL at less than the otherwise applicable rates and has sought to make OOCL pay for charges imposed on SEA by third parties without any fault of OOCL.

68. OOCL's rates for Store Door delivery did not include payment of charges which were incurred when Samsung, SEA or their agents were responsible for the delay.

69. Samsung failed to comply with its "customary responsibilities" as recognized by the FMC, and has stood the Incentive Principle on its head by refusing to pay the charges Samsung, SEA and their agents have caused to be incurred.

IV. VIOLATION OF THE SHIPPING ACT BY SAMSUNG

VIOLATION OF 46 U.S.C. § 41102(a)

70. OOCL repeats and realleges the foregoing allegations.

71. Section 41102(a) of the Shipping Act, 46 U.S.C. § 41102(a), prohibits a person from “knowingly and willfully, directly or indirectly, by means of false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust or unfair device or means, obtain or attempt to obtain ocean transportation for property at less than the rates or charges that would otherwise apply.”

72. During Samsung’s negotiation of the Service Contracts with OOCL, Samsung required that all trucking of cargo transported by OOCL under the Service Contracts be performed by CNTs designated by SEA.

73. Pursuant to the terms and conditions of Tariff Rule OOLL-100 Rule Number: T-26, OOCL acted as an agent for Samsung for purposes of arranging the trucking of containerized shipments transported by OOCL under the Service Contracts.

74. Pursuant to the terms and conditions of Tariff Rule OOLL-100 Rule Number: T-26, the contract of carriage for inland door delivery of shipments transported by OOCL under the Service Contracts was deemed to be between the trucker and either Samsung or SEA as the owner of the cargo.

75. Pursuant to the terms and conditions of Tariff Rule OOLL-100 Rule Number: T-26, the CNTs were employed by either Samsung or SEA as the owner of the cargo, and not by OOCL, and OOCL’s sole responsibility was the payment to the CNT of freight charges that were included in its Store Door delivery service.

76. Pursuant to the terms and conditions of Tariff Rule OOLL-100 Rule Number: T-26, OOCL paid the CNTs designated by SEA only as agent for the Shipper, Samsung.

77. Except for its obligation to pay to CNTs the freight charges agreed upon by OOCL for the inland delivery of containerized shipments transported under the Service Contracts, OOCL was not responsible for the failure to perform by the CNTs, nor was OOCL responsible for failures to perform by Samsung or Samsung's Affiliates, including but not limited to acts or omissions by SEA which resulted in SEA's incurring of detention, demurrage and storage charges at ocean terminals, rail terminals, or other facilities.

78. Charges assessed to SEA for demurrage were incurred because shipments were left at marine terminals past the expiration of free time while awaiting pickup by the CNTs designated by SEA.

79. SEA ignored multiple and timely written notifications sent by OOCL to SEA regarding the date of arrival, last free day and accrued demurrage charges for SEA's shipments.

80. SEA also failed to take prompt action in response to "long-dwelling letters" OOCL sent to SEA seeking to obtain its instructions with respect to containers which, after going into demurrage, continued to remain at OOCL's terminals.

81. Charges to SEA for detention were incurred due to the failure of SEA or its designated CNTs to timely return empty containers prior to the expiration of free time and not due to any act or omission on the part of OOCL.

82. The Service Contracts provided for the assessment of demurrage, detention and related charges arising from the failure of Samsung's consignee, SEA, to timely take delivery of containerized shipments and return empty containers after the expiration of extended free time periods which had been negotiated between Samsung and OOCL.

83. Upon information and belief, a substantial portion of the demurrage and detention charges assessed against SEA by OOCL were attributable to the failure of SEA's designated

CNTs to perform in a timely manner. Under the terms of OOCL's tariff, such failure is the responsibility of SEA, not OOCL.

84. Upon information and belief, a portion of the demurrage and detention charges assessed against SEA by OOCL were attributable to SEA's mismanagement of its supply chain with respect to OOCL including failure to provide adequate warehouse facilities for the timely receipt and unloading of cargo.

85. Samsung has, with its agents, affiliates, and consignees named above, violated 46 U.S.C. § 41102(a)(1) by:

- a. negotiating and entering into Service Contracts with OOCL that they knew obligated them to bear certain costs associated with Store Door deliveries;
- b. inducing OOCL to enter into the Service Contracts on the rates, terms, and conditions set forth therein, and to provide services thereunder, concealing their disagreement with the clear terms of the Service Contracts making Samsung responsible for charges associated with inland delivery, then demanding refund of charges for which they were responsible under the Service Contracts.
- c. attempting to obtain the transportation contracted for without bearing the applicable charges that they knew, or should have known, applied under the terms of the Service Contracts.

86. Through such knowing and willful conduct, Samsung used this unjust and unfair device or means to obtain or attempt to obtain ocean transportation at less than applicable rates and terms.

87. The intent and intended effect of its actions was for Samsung, together with its agents, affiliates, and consignees, to obtain transportation services from OOCL at rates and charges less than those otherwise applicable under U.S. law and regulation, as reflected in the

Service Contracts filed with the Federal Maritime Commission and which incorporated the terms of OOCL's published tariff.

V. CAUSATION AND INJURY TO COMPLAINANTS

88. As a result of Samsung's violation of 46 U.S.C. § 41102(a), OOCL has been exposed to damages in the amount alleged in the Amended Verified Complaint, specifically in excess of \$14,300,000 plus interest, as well as legal costs as a result of the proceeding filed against it by SEA, and Samsung is liable to OOCL for all damages, including legal costs, that OOCL may incur.

VI. PLACE OF HEARING

89. The Third-Party Complainants request a hearing on this matter, and further request that the hearing be held at the Federal Maritime Commission, 800 N. Capitol St., NW, Washington, D.C. 20573-0001.

VII. PRAYER FOR RELIEF

WHEREFORE, the Third-Party Complainants, Orient Overseas Container Line Ltd. and OOCL (Europe) Ltd., respectfully request that the Third-Party Respondent, Samsung Electronics Company, Ltd. be required to answer the charges in this Amended Third-Party Complaint, and that after the Commission's investigation and hearing, and that the Commission shall issue an order:

A. Declaring that Samsung has violated the Shipping Act and the rules of the Federal Maritime Commission and are jointly and severally liable for reparations.

B. Requiring Samsung to pay Third-Party Complainant reparations in an amount to be determined at trial, plus interest from the date of the injury, for the unlawful conduct described above;

C. Requiring the payment by Samsung of any other amounts that the Federal Maritime Commission deems appropriate;

D. Ordering that Samsung cease and desist from its unlawful conduct of seeking refunds for charges properly paid to Third-Party Complainant;

E. Providing Third-Party Complainant such other and further relief that the Federal Maritime Commission deems just and proper; and

F. At an appropriate time, awarding Third-Party Complainant reasonable attorneys' fees pursuant to 46 U.S.C. § 41305(e).

Dated: September 29, 2025

Respectfully submitted,

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*Attorneys for Respondents,
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VERIFICATION

I declare under penalty of perjury under the laws of the United States of America that the foregoing **Amended Third Party Complaint** is true and correct.

Signed: *Gavin Murdoch*

Name Gavin Murdoch

Title VP – Risk & Compliance

Date September 29, 2025

CERTIFICATE OF SERVICE

I certify that on the 29th day of September, 2025, a true and correct copy of the foregoing Amended Third-Party Complaint was served by email on all counsel of record.

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